

Case :- WRIT - C No. - 4189 of 2021

Petitioner :- Smt. Sushila Devi

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- R.S. Pandey,Rajshree Malviya

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri N. K. Tiwari, learned counsel for respondent nos.4 and 5 and learned Standing Counsel for State-respondent nos.1 to 3.

The instant petition has been filed seeking following reliefs :-

"(i) Issue a writ, order or direction in the nature of certiorari by quashing the impugned certificate (citation) dated 31.12.2020 for Rs.1,27,504/- issued by the respondent no.2 and 3 including recovery charges whichever be (Annexure No.1 with this instant writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus by directing the concern authority of electricity department to withdraw its recovery certificate from District Magistrate, Prayagraj (Allahabad) and again sent correct bills of electricity of the petitioner.

(iii) Issue a writ, order or direction in the nature of mandamus by directing the concerned respondent to modify the electricity bills w.e.f. August, 2018 to January, 2021 counting at the rate of past consumption of electricity of the petitioner and adjusted previous deposited amount of the petitioner to the concerned electricity department i.e. office of the respondent."

At the very outset, learned counsel for respondent-Power Corporation raised a preliminary objection that the petitioner is disputing the accuracy of electricity bills, hence, he has an alternative remedy to file a complaint with the competent

authority under the provisions of Clause 6.5 (b) of Electricity Supply Code, 2005 and this writ petition may not be entertained.

Learned counsel for the petitioner fairly submits that he may be allowed an opportunity to appear before the concerned authority by way of filing a representation in this regard.

In aforesaid view of the matter, without entering into the merits of the case, we dispose of this writ petition directing the petitioner to move a representation under the provisions of Clause 6.5 (b) of Electricity Supply Code, 2005 before concerned competent authority within two weeks, which shall be considered and decided by the respondent authority strictly in accordance with law by passing an appropriate, reasoned and speaking order, after affording an opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks thereafter.

For a period of six weeks from today or till the final decision on petitioner's representation, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of impugned certificate (citation) dated 31.12.2020.

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 9.2.2021

Manish Himwan